

The Foreign Exchange Regulation Rules, 1974

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Union of India - Act

The Foreign Exchange Regulation Rules, 1974

UNION OF INDIA

India

The Foreign Exchange Regulation Rules, 1974

Rule THE-FOREIGN-EXCHANGE-REGULATION-RULES-1974 of 1974

Published on 1 January 1974

Commenced on 1 January 1974

[This is the version of this document from 1 January 1974.]

[Note: The original publication document is not available and this content could not be verified.]

The Foreign Exchange Regulation Rules, 1974

Published vide G.S.R. 80, dated 1.1.1974.

11.

/585

In exercise of the powers conferred by section 79 of the Foreign Exchange Regulation Act, 1973 (46 of 1973

), and in supersession of the Foreign Exchange Regulation Rules, 1952 the Central Government hereby makes the following rules, namely:--

1.

Short title and commencement .-(1) These rules may be called The Foreign Exchange Regulation Rules, 1974.

(2)

They shall come into force at once.

2.

Definitions .-In these rules, unless the context otherwise requires,--

(a)

"Act" means the Foreign Exchange Regulation Act, 1973 (46 of 1973

);

(b)

"Schedule" means a Schedule appended to these rules.

3.

Service of direction, orders or notices made or issued under the Act, or these rules or under any order or notification made thereunder .-A direction, order or notice made or issued under the Act or these rules or any order or notification made thereunder shall be served on any person in the following manner, that is to say:--

(a)

by delivering or tendering it to that person or to his duly authorised agent; or

(b)

by sending it to him by registered post with acknowledgement due to the address of his place of residence or his last known place of residence or the place where he carries on, or last carried on, business, or personally works, or last worked, for gain; or

(c)

if it cannot be served in any of the manners aforesaid, by affixing it on the outer door or some other conspicuous part of the premises in which that person resides or is known to have last resided or carries on, or last carried on, business, or personally works, or last worked for gain and the written report whereof should be witnessed by two persons.

4.

[Indication of import-export code number

.-The import-export code number allotted by the Director General of Foreign Trade under section 7 of the Foreign Trade (Development and Regulation) Act, 1992 (22 of 1992

) shall be indicated on all copies of the GR or PP or VP/COD forms completed and lodged by the exporter or his agent with the Customs or the Postal Authorities and in all correspondence of the exporter with its bank or the Reserve Bank, as the case may be.]

5.

Form of declarations .-(1) A declaration under section 18 of the Act shall be in one of the Forms set out in the Second Schedule and as specified therein according to the requirements of the case.

(2)

Declarations shall be executed in sets of such number as indicated on the forms.

6.

[Authority to whom declaration is to be furnished

.-(1) [(a) In the case of specified customs offices, wherein the specified categories of Shipping Bills are processed electronically, the declaration Form SDF in respect of such Shipping Bills shall be submitted in duplicate to the Commissioner of Customs having jurisdiction over such specified customs offices. After duly verifying and authenticating the declaration Form SDF, the Commissioner of Customs shall hand over to the exporter one copy of such Shipping Bill marked as "Exchange Control Copy" in which declaration Form SDF has been appended for being submitted to the authorised dealer and order one copy of such Shipping Bill in which Form SDF had been appended to be kept in the records of the specified office.

(aa)

in the case of custom offices other than those specified customs offices, and in respect of Shipping Bills other than the specified categories of Shipping Bills the declaration Form GR shall be submitted in duplicate to the Commissioner of Customs. After duly verifying and authenticating the declaration form, the Commissioner of Customs shall forward the original declaration form to the nearest office of the Reserve Bank and hand over the duplicate form to the exporter for being submitted to the authorised dealer.

Explanation .-For the purposes of this sub-rule, the expression--

(i)

"specified customs office" means the office of the Commissioner of Customs specified by the Commissioner of Customs having jurisdiction to specify custom offices for the purpose of this sub-rule;

(ii)

"specified categories of Shipping Bills" means the categories of Shipping Bills processed electronically and specified by the Commissioner of Customs having jurisdiction to specify customs offices for the purpose of this sub-rule.]

(b)

[The declaration Form PP shall be submitted in duplicate to the authorised dealer in foreign exchange named in the form. The authorised dealer shall, after countersigning the declaration form, hand over the original form to the exporter which shall be submitted to the postal authorities through which the goods are being despatched. The postal authorities, after despatch of the goods, shall forward the declaration form to the nearest office of the Reserve Bank.

[Substituted by G.S.R. 776(E), dated 27.12.1993 (w.e.f. 27.12.1993).]

(c)

On realisation of the export proceeds, the authorised dealer shall, after due certification, submit the duplicate declaration form to the nearest office of the Reserve Bank.

(d)

In the case of exports on value payable/cash on delivery basis, the declaration Form VP/COD shall be submitted to the postal authority with the relative parcel at the time of despatch. The postal authority shall send the form to the nearest office of the Reserve Bank.

(2)

The documents pertaining to export shall, within 21 days from the date of export, be submitted to the authorised dealer mentioned in the relevant declaration form, unless the Reserve Bank authorises otherwise.]

7.

Evidence in support of declaration .-(1) The Reserve Bank or subject to such directions if any, as may be given by Reserve Bank, the [Commissioner of Customs] or the postal authorities, may, to satisfy themselves of due compliance with section 18 of the Act, require such evidence in support of the declaration as may satisfy them that the exporter is a person resident in India, and has a place of business in India.

(2)

The Reserve Bank, or subject to such directions, if any, as may be given by the Reserve Bank, the [Commissioner of Customs]

[Substituted by G.S.R. 503(E), dated 30.10.1996 (w.e.f. 31.10.1996).]

, or the postal authorities may require any exporter to produce in support of the declaration such evidence as may be in his possession or power to satisfy them--

(a)

that the destination stated on the declaration is the final place of destination of the goods exported;

(b)

that the value stated in the declaration is--

(i)

the full export value of the goods;

(ii)

where the full export value of the goods is not ascertainable at the time of export the value which the exporter, having regard to the prevailing market conditions, expects to receive on the sale of the goods in the overseas market;

(c)

that the full export value of the goods (whether ascertainable at the time of export or not) has been or will within the prescribed period be paid in the prescribed manner.

Explanation .-For the purpose of this rule "final place of destination" means a place in a country in which the goods are ultimately imported and cleared through customs of that country.

8.

[Period within which export value of goods to be realised

.-The amount representing the full export value of the goods exported shall be realised and be paid to the authorised

dealer on the due date for payment or within six months from the date of shipment of the goods whichever is earlier:
Provided that, where the goods are exported to a warehouse established out-side India with the permission of the Reserve Bank, the amount representing full export value of the goods exported shall be paid to the authorised dealer as soon as it is realised and in any case within fifteen months from the date of shipment of goods:

Provided further that the Reserve Bank may, for sufficient and reasonable cause shown, extend the said period.]

9.

Manner of payment of export value of goods .-Unless otherwise authorised by the Reserve Bank, the amount representing the full export value of goods exported to the countries specified in the Third Schedule shall be paid through an authorised dealer and in the manner specified in the said Schedule.

10.

to 11[* * *]

12.

[Application for permission to practise any profession or carry on any occupation, trade or business in India

.-An application for permission under section 30 of the Act by a national of a foreign state to practise any profession or to carry on any occupation, trade or business in India shall be submitted in Form EFN specified in the Sixth Schedule.]

[* * *]

[First Schedule omitted by G.S.R. 503(E), dated 30.10.1996 (w.e.f. 31.10.1996).]

SECOND SCHEDULE

[See rule 5]

Part A

[GR, PP, VP/COD and SDF Forms]

[Substituted by G.S.R. 783(E), dated 23-12-1998]

Part B

The Forms in Part A and set out in Column 1 below shall be used for the purpose of declaring exports specified against each in Column 2 below:

Column 1

Column 2

[Form GR

[Substituted by G.S.R. 783(E), dated 23-12-1998]

To be used for declaring exports in the case of customs offices other than specified customs offices and shipping bills other than the specified categories of shipping bills mentioned under clause (aa) of sub-rule (1) of rule 6;

1-A. Form SDF

To be used for declaring exports in the case of specified customs offices and specified categories of shipping bills, mentioned under clause (a) of sub-rule (1) of rule 6.]

2. Form PP

To be used for declaring exports by post parcel to all countries other than Nepal and Bhutan.

3. Form VP/COD

To be used for declaring exports by post parcel to all countries other than Nepal and Bhutan in cases where payments are to be received otherwise than through authorised dealers.

[Exchange Control Declaration (GR) Form]

[Substituted vide AD (MA Series) Circular No. 16]

Original

Exporter

Invoice No. & Date

AR4/AR4A No. & Date

Q/Cert No. & Date

SB No. & Date

Import-Export Code No.

[***]

[Omitted by G.S.R. 503(E), dated 30-10-1996]

Consignee

Export Trade Control

If export under

Deferred Credit ☐

joint Ventures ☐

Rupee Credit ☐ Others ☐

Custom House Agent LIC No

Pre-Carriage by Vessel/Flight No.

Place of Receipt by Pre-Carrier

Rotation No.

RBI's Approval/Cir. No. & Date

Type of shipment:

OutrightSale ☐

Consignment Export ☐

Others ☐

(Specify)

PortofLoading

Nature of Contract : CIF ☐/C&F

☐/FOB ☐ Other (Specify) ☐

PortofDischarge

Country of Destination

Exchange Rate U/S 14 of CA Currency of invoice

S.

No.

Marks

& No.

No.

& Kind of Pkgs. Container Nos.

Statistical Code & Description of Goods

Quantity

Value FOB

Net Weight

Gross Weight

Total FOB Value in words

Analysis of Export Value

Currency

Full export value or where not ascertainable, the value which exporter expects to receive on the sale of goods :

Amount.....

FOB value.....

Freight.....

Insurance.....

Commission.....Rate.....

Currency.....

Discount.....

Amount.....

Other Deductions.....

Is Export under L/C arrangements?Yes ☐ No ☐

FOR CUSTOMS

If yes, name of advising bank inIndia

Customs Assessable Value Rs.

(Rs.

.....

.....)

Bank through which payment is to be received

Export Value Verified

Customs Appraiser

Date of shipment

Customs Appraiser

Whether payment is to be received through the ACU Yes/No

DECLARATION UNDER FOREIGN EXCHANGE REGULATION ACT :

I/We hereby declare that I/We am/are the *SELLER/CONSIGNOR of the goods in respect of which this declaration is made and that the particulars given above are true and that (a) *the value as contracted with the buyer is the same as the full export value declared overleaf (b) *the full export value of the goods is not ascertainable at the time of export and that the value declared IS that which I/We, having regard to the prevailing market conditions, expect to receive on the sale of goods in the overseas market.

I/We undertake that I/We will deliver to the bank named herein the foreign exchange representing the full export value of the goods on or before @..... in the manner prescribed in rule 9 of the Foreign Exchange Regulation Rules, 1974.

I/We further declare that I/We am/are resident in India and I/We have a place of business in India.

I/We* am /are OR am/are not in Caution List of the Reserve Bank of India.

.....

(Signature of Exporter)

Date

@ [State approximate date of delivery which must be the due date for payment or within six months from the date of shipment, whichever is earlier]

[Substituted by G.S.R. 776(E), dated 27-12-1993]

out for exports to warehouses established outside India with the permission of the Reserve Bank the date of delivery must be within fifteen months.

*Strike out whichever is not applicable.

SPACE FOR USE BY RESERVE BANK OF INDIA

EXCHANGE CONTROL DECLARATION (GR) FORM

Duplicate

Exporter

Invoice No. & Date

AR4/AR4A No. & Date

Q/Cert No. & Date

SB No. & Date

Import-Export Code No.

[***]

[Omitted by G.S.R. 503(E), dated 30-10-1996]

Consignee

Export Trade Control

If export under

Deferred Credit []

joint Ventures []

Rupee Credit [] Others []

Custom House Agent L/C No

Pre-Carriage by Vessel/Flight No.

Place of Receipt by Pre-Carrier

Rotation No.

RBI's Approval/Cir. No. & Date

Type of shipment:

Outright Sale []

Consignment Export ☐

Others ☐

(Specify)

Port of Loading

Nature of Contract : CIF ☐/C&F ☐/FOB ☐ Other (Specify) ☐

Port of Discharge

Country of Destination

Exchange Rate U/S 14 of CA Currency of invoice

S.

No.

Marks

& No.

No.

& Kind of Pkgs. Container Nos.

Statistical Code & Description of Goods

Quantity

Value FOB

Net Weight

Gross Weight

Total FOB Value in words

Analysis of Export Value

Currency

Full export value or where not ascertainable, the value which exporter expects to receive on the sale of goods :

Amount.....

FOB value.....

Freight.....

Insurance.....

Commission.....Rate.....

Currency.....

Discount.....

Amount.....

Other Deductions.....

Is Export under L/C arrangements? Yes ☐ No ☐

FOR CUSTOMS

If yes, name of advising bank in India

Customs Assessable Value Rs.

(Rs.

.....)

Bank through which payment is to be received

Export Value Verified

Customs Appraiser

Date of shipment

Customs Appraiser

Whether payment is to be received through the ACU Yes/No

DECLARATION UNDER FOREIGN EXCHANGE REGULATION ACT:

I/We hereby declare that I/We am/are the *SELLER/CONSIGNOR of the goods in respect of which this declaration is made and that the particulars given above are true and that (a) *the value as contracted with the buyer is the same as the full export value declared overleaf (b) *the full export value of the goods is not ascertainable at the time of export and that the value declared IS that which I/We, having regard to the prevailing market conditions, expect to receive on the sale of goods in the overseas market.

I/We undertake that I/We will deliver to the bank named herein the foreign exchange representing the full export value of

the goods on or before@..... in the manner prescribed in rule 9 of the Foreign Exchange Regulation Rules, 1974.

I/We further declare that I/We am/are resident in India and I/We have a place of business in India.

I/We* am/are OR am/are not in Caution List of the Reserve Bank of India.

.....
(Signature of Exporter)

Date.....

@[State approximate date of delivery which must be the due date for payment or within six months from the date of shipment, whichever is earlier]

[Substituted by G.S.R. 776(E), dated 27-12-1993]

out for exports to warehouses established outside India with the permission of the Reserve Bank the date of delivery must be within fifteen months.

*Strike out whichever is not applicable.

FOR AUTHORISED DEALER'S USE

Indicate () in the box applicable

Uniform Code Number

* Date of* (i) negotiation/ (ii) receipt for collectionBill No.....

Type of Bill* (i) DA []/(ii) DP []/(iii) Others [](Specify)

Types of shipment: *(i) Firm Sale Withers []/

(ii) Consignment Basis []/(iii) Others [] (Specify)

The GR form was included in the Statement sent to the Reserve Bank with the R-Return for the fortnight endingsent on

We certify and confirm that we have received the total amount ofas under being the proceeds of exports declared on this form (Currency amount)

Date of receipt

Currency

Credit to Nostro Account in (Country)

Debit to NR Rupee Account of a Bank in..... (Country)

Period of R-Return with which the realisation has been reported to RBI

In our name

In the name of*

Held with us

Held with*

.....

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(*Write the name of the concerned Indian Authorised Dealer Branch). Any other manner of receipt (Specify).....

(Stamp & Signature of authorised dealer)

Date

Address

.....

.....

SPACE FOR USE BY RESERVE BANK OF INDIA

EXCHANGE CONTROL (EXPORTER'S DECLARATION) ORIGINAL

Form Number:

FORM: PP

[Please see 'Notes to Exporters' overleaf]
(for RBI use)

1. (a) Name of the Post Office
(b) Number and date of Parcel Receipt.....

2. Exporter's Name:
.....

3. [Import-Export Code No.]
[Substituted by G.S.R. 503(E), dated 30-10-1006]
.....
.....

4. Buyer's/Consignee's Name and address:

5. Country of destination:
.....

6. Nature of contract* (i) CIF/(ii) C&F/(iii) FOB/(iv) Others (Specify)
.....
.....

7. Date of despatch:

8. Type of shipment* (i) OutrightSale/(ii) Consignment export/(iii) Others (Specify):
.....

9. Description of goods:

10. Quantity of goods: Unit:Quantity:.....

11. Currency of Invoice:
[Tonne/Kilogram/Litre/Cubic Metre/Sq. Metre/Metre/Number/Others
(Specify)]

12. Analysis of export value:

ParticularsCurrencyAmount

@Full Export value

F.O.B. Value

Freight

Insurance

!Discount(Rate)

!AgencyCommission (Rate.....)

@ Where the full export value is not ascertainable, value expected on sale of goods in the overseas market may be shown.

No application for permission for remittance/deduction from the declared value on account of a commission and/or discount will be entertained by the Reserve Bank [Or authorised dealer]

[Inserted by G.S.R. 776(E), dated 27-12-1993]

unless these have been declared on this form.

(For Customs Use)

Export value verified

(Customs Appraiser)

13. Customs Assessable Value (Rupees)

14. If the export is made under general permission of the Reserve Bank of India, Number and date of its approval
.....

15. If the export is made under L/C arrangements, name of advising bank of India:.....

16. State if the payment is to be received through the Asian Clearing Union: *Yes/No.....

17. Name and address of bank through whom payment is to be received

I/We hereby declare that I/We am/are the *SELLER/CONSIGNOR of the goods in respect of which the declaration is made and that the particulars given above are true and that* (a) the export value as contracted with the buyer is the same as the full export value declared above/* (b) the full export value of goods is not ascertainable at the time of export and that the value declared is that which I/We, having regard to the prevailing market conditions, expect to receive on

the sale of goods in the overseas market.

I/We undertake that I/We will deliver to the bank named above the foreign exchange representing the full export value of the goods on or before! in the manner prescribed in rule 9 of the Foreign Exchange Regulation Rules, 1974.

I/We further declare that I/We am/are resident in India and I/We have a place of business in India.

I/We *am/are not/am/are in the Caution List of the Reserve Bank of India.

State approximate date of delivery which must be the due date for payment or within six months of the date of shipment, whichever is earlier.

*Strike out whichever is not applicable.

(For A.D.'s use)

.....

(Signature of Exporter)

Stamp & Signature of Authorised dealer

Date.....

Bank's Uniform Code No

Date

Address

NOTES TO EXPORTERS

(1)

This form should not be pasted on the parcel.

(2)

The PP form procedure applies to postal exports to all territories outside India excluding Nepal and Bhutan. The PP form should be completed in duplicate in all cases.

(3)

The Original should be submitted by the exporter to the Post Office after having it countersigned by an authorised dealer in foreign exchange. The Post Office through which the goods have been despatched will forward the Original to the nearest office of Reserve Bank of India.

(4)

All documents relating to export of goods from India must be passed through the medium of an authorised dealer in foreign exchange in India within 21 days of the date of shipment of the goods.

(5)

[The amount representing the full export value of the goods must be realised on the due date for payment or within six months from the date of shipment, whichever is earlier]

[Substituted by G.S.R. 776(E), dated 27-12-1993]

.

[***]

[Omitted by G.S.R. 776(E), dated 27-12-1993]

Note.- Government of India/Indian financial institutions may conclude from time to time Special Trade Agreements with other countries providing for settlement of certain payments from the countries in a specified manner or for exports to be financed from Government to Government Credits. Reserve Bank will advise authorised dealers of such arrangements by issue of circulars. Methods of payment specified in the individual arrangements will have to be followed in such cases.

SPACE FOR USE BY RESERVE BANK OF INDIA

EXCHANGE CONTROL (EXPORTER'S DECLARATION)

DUPLICATE

Form Number:

FORM: PP

[Please see 'Notes to Exporters' overleaf]

(for RBI use)

1. (a) Name of the Post Office

(b) Number and date of Parcel Receipt.....

2. Exporter's Name:.....

.....

3. [Import-Export Code No.]

[Substituted by G.S.R. 503(E), dated 31-10-1996]

.....

.....

4. Buyer's/Consignee's Name and address:

5. Country of destination:

.....

6. Nature of contract* (i) CIF/(ii) C&F/(iii) FOB/(iv) Others (Specify)

.....

.....

7. Date of despatch:

8. Type of shipment* (i) OutrightSale/(ii) Consignment export/(iii) Others (Specify):

.....

9. Description of goods:

10. Quantity of goods: Unit:Quantity:.....

11. Currency of Invoice:

[Tonne/Kilogram/Litre/Cubic Metre/Sq. Metre/Metre/Number/Others

(Specify)]

12. Analysis of export value:

ParticularsCurrencyAmount

@Full Export value

F.O.B. Value

Freight

Insurance

!Discount(Rate

!AgencyCommission (Rate.....)

@ Where the full export value is not ascertainable, value expected on sale of goods in the overseas market may be shown.

No application for permission for remittance/deduction from the declared value on account of a commission and/or discount will be entertained by the Reserve Bank[Or authorised dealer]

[Inserted by G.S.R. 776(E), dated 27-12-1993]

unless these have been declared on this form.

(For Customs Use)

Export value verified

(Customs Appraiser)

13. Customs Assessable Value (Rupees)

14. If the export is made under general permission of the Reserve Bank ofIndia, Number and date of its approval

.....

15. If the export is made under L/C arrangements, name of advising bank ofIndia:

.....

16. State if the payment is to be received through the Asian Clearing Union: *Yes/No

.....

17. Name and address of bank through whom payment is to bereceived

.....

I/We hereby declare that I/We am/are the *SELLER/CONSIGNOR of the goods in respect of which the declaration is made and that the particulars given above are true and that* (a) the export value as contracted with the buyer is the same as the full export value declared above/* (b) the full export value of goods is not ascertainable at the time of export and that the value declared is that which I/We, having regard to the prevailing market conditions, expect to receive on the sale of goods in the overseas market.

I/We undertake that I/We will deliver to the bank named above the foreign exchange representing the full export value of

the goods on or before !in the manner prescribed in rule 9 of the Foreign Exchange Regulation Rules, 1974. I/We further declare that I / We am/are resident in India and I/We have a place of business in India.

I/ We *am/are not/am/are in the Caution List of the Reserve Bank of India.

!State approximate date of delivery which must be within six months of the date of shipment.

*Strike out whichever is not applicable.

(For A.D's use)

.....

(Signature of Exporter)

Stamp & Signature of Authorised dealer

Date.....

Bank's Uniform Code No.....

Date

Address

.....

.....

.....

Note. - All documents relating to export of goods from India must be passed through the medium of an authorised dealer in foreign exchange in India within 21 days of the date of shipment of the goods.

FOR AUTHORISED DEALER'S USE

Uniform Code Number:.....

Date of* (i) negotiation/ (ii) receipt for collection Bill No.....

Type of bills *(i) DA/(ii) DP/(iii) Other.....

*Strike out whichever is not applicable.

Type of shipment: *(i) Firm Sale Contract/ (ii) Consignment Basis/(iii) Others (Specify).....The PP form was included in the Statement sent to the Reserve Bank with the R-Return for the fortnight ending.....sent on.....

We certify and confirm that we have received the total amount of.....as under being the proceeds of exports declared on this form.

Currency amount

Date of receipt

Currency

Credit to Nostro Account in (Country)

Debit to NR Rupee Account of a Bank in..... (Country)

Period of R-Return with which the realisation has been reported to RBI

In our name

In the name of*

Held with us

Held with*

.....

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(Write the name of the concerned Indian Authorised Dealer branch.)

Any other manner of receipt (Specify)

.....

(Stamp & Signature of authorised dealer)

Date

Address

NOTES TO AUTHORISED DEALER:

1. Please ensure that the columns on the face of the PP Form have been completed by the exporter and that they have been duly authenticated by the Postal authorities wherever necessary.
2. On receipt of the full export value of the shipment declared on this form, the authorised dealer will forward to the Reserve Bank this duplicate copy of the form together with a copy of the Customs certified Shipper's Invoice, duly certified. In respect of shipments made on consignment basis, the Account Sales received from the consignee in original in support of the proceeds actually realised should also be forwarded along with this copy of the form.
3. In case the net amount received falls short of the full export value declared on the form for reasons other than deduction of bank charges, please indicate the authority conferred on the authorised dealers by or under the Exchange Control manual or the Authorised Dealer's Circular or Circulars, as the case may be, or the Reserve Bank of India's approval number and date for reduction.

SPACE FOR USE BY RESERVE BANK OF INDIA

FORM VP/COD

Serial No.

EXCHANGE CONTROL

DECLARATION REQUIRED FROM EXPORTER BEFORE SENDING GOODS BY POST ON VP/COD BASIS TO COUNTRIES OUTSIDE INDIA OTHER THAN NEPAL AND BHUTAN

Notes (i) This form should not be pasted on the parcel.

(ii)

This form should be forwarded to the nearest office of the Reserve Bank of India by the Post Office through which the goods have been despatched.

Parcel Receipt No. and date..... Name of the Post Office.....

1. Exporter's name

2. [2. Import-Export Code No.]

[Substituted by G.S.R. 503(E), dated 30-12-1996]

3. Name and address of consignee:

4. Country of destination

5. Currency of invoice

6. Customs assessable value (Rupees)

7. Description of goods

8. Quantity of goods

Tonne

Kg.

Litre

Cubic Metre

Sq. Metre

Metre

Number (Please specify)

Others

1

2

3

4

5

6

7

8

(a)

Unit of measure (Please tick the Appropriate unit)

(b)

Quantity

9. Analysis of export value

Particulars

Currency

Amount

Full export value

*Discount (Rate

.....)

*Agency Commission

(Rate

No application for permission for remittance/deduction from the declared value on account of commission and/or discount will be considered by the Reserve Bank [or authorised dealer]

[Inserted by G.S.R. 776(E), dated 27-12-1993]

unless these have been declared on this form:

I/We hereby declare that I/We am/are the seller of the goods in respect of which this declaration is made and that the particulars given above are true and that the value as contracted with the buyer is the same as the full export value declared above.

I/We further declare that I/We am/are resident in India and I/We have a place of business in India.

I/We* am/are not/am/are in the Caution List of the Reserve Bank of India.

*Complete whichever is appropriate.

(For use of Post Office)

Signature.....

Post Office Stamp

Date:.....

(Signature of Exporter)

Date:.....

Address:.....

SPACE FOR USE BY RESERVE BANK OF INDIA

[FORM SDF]

[Inserted by G.S.R. 783(E), dated 23-12-1998]

[See rule 6 (1)(a)]

Shipping Bill No

Date:.....

Declaration under Foreign Exchange Regulation Act, 1973:

I/We hereby declare that I/We am/are the *SELLER/CONSIGNOR of the goods in respect of which this declaration is made and that the particulars given in the Shipping Bill No.....dated....., are true and that (a)* the value as contracted with the buyer is the same as the full export value declared in the above shipping bill (b)* the full export value of the goods is not ascertainable at the time of export and that the value declared is that which, I/We, having regard to the prevailing market conditions, expect to receive on the sale of goods in the overseas market.

I/We undertake that I/We will deliver to the bank named hereinthe foreign exchange representing the full export value of the goods on or before @.....in the manner prescribed in rule 9 of the Foreign Exchange Regulation Rules, 1974. I/We further declare that I/We am/are resident in India and I/We have a place of business in India.

I/We* am/are or am/are not in Caution List of the Reserve Bank of India.

Date

.....

(Signature of Exporter)

Name:.....

@State appropriate date of delivery which must be the due date for payment or within six months from the date of shipment, whichever is earlier, but for exports to warehouses established outside India with permission of the Reserve Bank, the date of delivery must be within fifteen months.

*Strike out whichever is not applicable.]

[THIRD SCHEDULE]

[Substituted by G.S.R. 776(E), dated 27-12-1993]

(See rule 9)

MANNER FOR REALISATION OF VALUE OF GOODS EXPORTED FROM INDIA

Group

Manner of realization

(1) All countries other than those listed under (2) below

(a) Payment in any freely convertible foreign currency, i.e., a currency that is permitted by the rules and regulations of the country concerned to be converted into major reserve currencies like US dollar, Pound Sterling, Deutsche Mark, Japanese Yen and for which a fairly active market exists for dealings against the major currencies.

(b) Payment in rupees from the account of a bank situate in any country in this Group.

(2) Member countries in the Asian Clearing Union (except Nepal), viz., Bangladesh, Myanmar, Islamic Republic of Iran, Pakistan and Sri Lanka.

(a) Payment for all eligible current transactions in Indian Rupees or Asian Monetary Unit (AMU) or in the currency of the participating country in which the other party to the transaction is resident

or

(b) Payment in any freely convertible foreign currency in all other cases.]

[***]

[Fourth and Fifth Schedules omitted by G.S.R. 776(E), dated 27-12-1993]

SIXTH SCHEDULE

(See rule 12)

[FORM EFM]

[Substituted by G.S.R. 776(E), dated 27-12-1993]

APPLICATION FOR PERMISSION UNDER SECTION 30 OF THE FOREIGN EXCHANGE REGULATION ACT, 1973 FOR PRACTISING ANY PROFESSION OR CARRYING ON ANY OCCUPATION, TRADE OR BUSINESS IN INDIA BY A FOREIGN NATIONAL

Instructions

1. Please complete all columns in the application form. Write N.A. where not applicable.

2. If the space provided in the form is not sufficient, the required information may be given in an Annexure duly numbered and attached to the form.

3. The form, duly completed by the foreign national, should be submitted to the Reserve Bank of India in Quadruplicate alongwith his current passport. If, however, the foreign national is not in India at the time of completion of this form, his passport should, be submitted to the Reserve Bank for verification within fifteen days of his arrival in India.

1. (i) Full name of the applicant

(i)

(ii) Address

(ii)

(a) Present

(a)

(b) Permanent

(b)

(iii) Nationality

(iii)

(iv) Academic/

professional qualifications

(iv)

2. Particulars of current passport

(i) Passport number

(i)

(ii) Date of issue

(ii)

(iii) Place of issue

(iii)

(iv) Issued by

(iv)

(v) Country of residence as stated in the passport

(v)

(vi) Country of birth

(vi)

(N.B.-In case you have in the past held a passport of any other country, please furnish full particulars, including the name of the issuing authority)

3. Particulars of visa (where necessary) obtained by the applicant for his entry into India

(i) Visa number

(i)

(ii) Type of visa

(e.g. Business, Tourist, etc.)

(ii)

(iii) Issued by

(iii)

(iv) Date of issue

(iv)

(v) Period of validity

(v)

4. Whether the applicant is already resident in India; if so, since when and the purpose for which he has been staying in the country.

5. If the permission is required for practising any profession in India, please state -

(i) Nature of the profession

(i)

(ii) Place where the profession is to be practiced

(ii)

(iii) Duration of stay in India for practising the profession

(iii)

(iv) Estimated monthly/annual earnings

(iv)

(v) Approximate amount proposed to be remitted abroad periodically out of the earnings in India, stating whether the remittances will be made on a monthly basis or otherwise.

(v)

6. If the permission is required for carrying on any occupation, trade or business in India, please state -

(i) Nature of occupation/trade/business

(i)

(ii) Place where the occupation/trade/business will be carried on

(ii)

(iii) Whether the Reserve Bank's approval has been obtained under section 29 of the Foreign Exchange Regulation Act, 1973 to carry on the trading/ business activity; if so, give the number and date of approval

(iii)

(iv) Initial capital /working funds required to carry on the occupation/trade/business stating the source from which the funds will be provided

(iv)

(v) Estimated monthly/annual earnings

(v)

(vi) Approximate amount proposed to be remitted abroad periodically out of the earnings in India, stating whether the remittances will be made on a monthly basis or otherwise.

(vi)

7. Whether the applicant has made any remittances in the past from India.

If so, give details of the last such remittance including particulars of Reserve Bank's approval, if any, obtained therefore.

8. If the applicant is already in India and maintains an account with a local bank, give number and date of Form Q.A22 covering the amount

I hereby declare that the particulars given above are true and correct to the best of my knowledge and belief.

Place:.....

Date:.....

.....

(Signature of Applicant)

[***]

[Seventh Schedule omitted by G.S.R. 776(E), dated 27-12-1993]

Related AI tags, queries and research notes

Translation